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MOTIONS TO QUASH

SERVICE

The Court tenders the following

decision in the matter Daniel Murphy, et al. v. Paradigm Peptides, et al.,

Los Angeles County Superior Court case number 26STCV06096, set for hearing on September 1, 2026. Paradigm Peptides (Paradigm), Jennifer Stechkoher, and Matthew Kawa (collectively, Defendants) separately move to quash service of Daniel and Laura Murphy's (collectively, Plaintiffs) first amended complaint (FAC), arguing that this Court lacks personal jurisdiction. The motions are continued for 75 days pending the completion of jurisdictional discovery.

A.

Legal Standard

A defendant

may file a motion to quash service of summons on the grounds that the Court lacks jurisdiction. (Code Civ. Proc., § 418.10, subd. (a)(1).) "When a defendant moves to quash service of process, the plaintiff bears the initial burden of demonstrating facts justifying the exercise of jurisdiction." (ParaFi Digital Opportunities LP v. Egorov (2025) 108 Cal.App.5th 124, 133 (ParaFi).) The plaintiff must present evidence of jurisdiction, not just allegations. (Ibid.) The burden then shifts to the defendant to demonstrate that the exercise of jurisdiction would be unreasonable. (Ibid.)

California courts

exercise personal jurisdiction to its fullest extent, consistent with the California and United States Constitutions. (Id., § 410.10.) For a non-resident

defendant to be subject to a court's personal jurisdiction, they must have sufficient minimum contacts with California. (Swenberg v. Dmarcian, Inc. (2021) 68 Cal.App.5th 280, 291.) Minimum contacts may justify a finding of either general or specific jurisdiction. (Goodyear Dunlop Tires Operations, S.A. v. Brown (2011) 564 U.S. 915, 919 (Goodyear).)

When a court asserts general jurisdiction over a defendant, it may hear all claims against them. (Goodyear, *supra*, 564 U.S. at p. 919.) General jurisdiction exists where a foreign corporation's affiliations with the state are so continuous and systematic as to "render [it] essentially at home in the forum state." (Ibid.) General jurisdiction is generally limited to a foreign corporation's state of incorporation and the state constituting its principal place of business. (Daimler AG v. Bauman (2014) 571 U.S. 117, 137.)

A court asserting specific jurisdiction may only hear claims "deriving from, or connected with, the very controversy that establishes jurisdiction." (Goodyear, *supra*, 564 U.S. at p. 919.) To exercise personal jurisdiction, a court must find an "affiliation between the forum and the underlying controversy, principally, [an] activity or an occurrence that takes place in the forum State." (Bristol-Myers Squibb Co. v. Superior Court of California, San Francisco (2017) 582 U.S. 255, 264.) A California court may exercise specific jurisdiction over a nonresident defendant if three requirements are met: "(1) the defendant must purposefully avail themselves of forum benefits; (2) the controversy must be related to or arise out of the defendant's forum contacts; and (3) the assertion of personal jurisdiction must comport with fair play and substantial justice." (ParaFi, *supra*, 108 Cal.App.5th 124 at p. 134.)

B.

Discussion

Defendants argue that quashing service is appropriate because the Court does not have personal jurisdiction over them. As a threshold matter, Plaintiff argues that Paradigm and Kawa's motions are untimely. A defendant may only challenge service based on lack of jurisdiction or inconvenient forum "on or before the last day of his or her time to plead or within any further time that the court may for good cause allow." (Code Civ. Proc., § 418.10, subd. (a).) Based on Plaintiffs' service of

the first amended complaint on May 8, 2026, the last day of Paradigm and Kawa's time to plead fell on June 7, 2026. But they did not file the present motions to quash until June 30 and July 9. Thus, the motions are untimely.

Paradigm and Kawa argue that the Court should exercise its discretion and allow the motion to be heard upon a showing of good cause. A tardy hearing date for a motion to quash under section 418.10 does not deprive the trial court of jurisdiction. (*Preciado v. Freightliner Custom Chassis Corp.* (2023) 87 Cal.App.5th 964, 969, fn. 4.) Here, Kawa testifies that he is an officer and director of Paradigm. (Kawa Decl. ¶ 5.) After he was served on May 8, he began contacting attorneys and law firms in California to retain counsel. (*Id.* ¶ 9.) Of the nine he contacted, many did not respond, and he was only able to secure counsel for himself and Paradigm by July 15, 2026. (*Id.* ¶¶ 10–12.) The Court finds that Kawa has shown good cause for allowing the present motions to quash to proceed based on his diligent attempts to retain counsel.

Plaintiffs do not substantively oppose Defendants' motions. Rather, they seek a continuance for the purpose of conducting jurisdictional discovery. "A trial court has discretion to continue the hearing on a motion to quash service of summons for lack of personal jurisdiction to allow the plaintiff to conduct discovery on jurisdictional issues." (*Burdick v. Superior Court* (2015) 233 Cal.App.4th 8, 30.) Here, the parties discussed the prospect of jurisdictional discovery in open Court and the parties agreed. (*Supp. Darvish Decl.* ¶¶ 4–5.) However, Plaintiffs never provided a stipulation to continue the present motions until discovery could be conducted, with Plaintiffs instead filing opposition briefs to the pending motions requesting that they be continued. (*Id.* ¶ 6.) The Court finds a continuance to be appropriate given these circumstances and does not find that Plaintiffs waived their right to the same by failing to stipulate to a continuance before the hearing. Accordingly, the present motions are continued for 75 days to allow for the completion of jurisdictional discovery.

Conclusion:

The Court continues
the present motions for 75 days.